

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Colorado

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	CDEC will complete Colorado's rulemaking process with changes to 12-month eligibility to come into compliance.	12/19/2024
2	CDEC will send the rule language to OCC for review.	12/20/2024
3	As of January 1, 2025, CDEC will provide a minimum 12-month eligibility for each child as required by 98.21(a)(1) by doing the following: Upon notification that a new child who is eligible for CCCAP has been added to the household, the case redetermination date will be aligned with the month in which the child was added to the household. The household re-determination date must not occur any earlier than twelve (12) months from the date the child was added to the home. Households whose cases close due to a voluntary withdrawal must not be required to provide additional documentation if they withdraw and request services again within the same twelve (12) month eligibility period. Eligibility shall be determined based on information provided at the most recent application or redetermination, and the family will receive the remainder of their twelve (12) month eligibility period as of the date the services are requested again.	01/01/2025

4	CDEC will submit a plan amendment with the newly promulgated rules language as appropriate evidence for compliance	01/01/2025
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EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The waiver was approved to provide CDEC with the appropriate time to work with all relevant partners (counties, providers, families) on how best to implement a new family co-payment formula to ensure it did not exceed 7% of a family's income. This additional time also allows CDEC to build the changes needed in our data system.	08/01/2026
2	CDEC will work with our partners to develop draft rules and practices to come into compliance.	06/01/2026
3	CDEC will share the draft rule with OCC for review.	06/01/2026
4	CDEC will promulgate the needed rule.	06/01/2026
5	CDEC will deploy the changes needed to our CCCAP data system, CHATS.	06/01/2026
6	CDEC will submit a plan amendment.	07/01/2026

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The waiver was approved to provide CDEC the appropriate time to work with all relevant partners (counties, providers, families) on how best to implement prospective pay and payment based on enrollment. This additional time also allows CDEC to build the changes needed in our data system.	08/01/2026
2	CDEC will work with our partners to develop draft rules and practices to come into compliance.	06/01/2026
3	CDEC will share the draft rule with OCC for review.	06/01/2026
4	CDEC will promulgate the needed rule.	06/01/2026
5	CDEC will deploy the changes needed to our CCCAP data system, CHATS.	06/01/2026
6	CDEC will submit a plan amendment.	07/01/2026

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child

care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 10/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	As of 10/1/2024, CDEC has implemented the first phase of an alternative methodology that supports the cost of care. The rates will be implemented over a 3 year period at 33% per year to close the gap between costs of care and the previous state-established rate for all licensed providers in family child care and center-based care. Operational Memo: https://drive.google.com/file/d/1uTkDYcRXuCX3dlbnzfyC5vtomzCNkWbR/view State-Established Daily Licensed Provider Reimbursement Rates 10/1/2024: Final CCCAP State-Established Daily Licensed Reimbursement Rates Effective 10.1.2024 can be found at: https://drive.google.com/file/d/1j9wqebwdFbZqNlpwuLcYEXgKqKvXagUf/view Alternative Rate Methodology Final Report: CDEC Alternative Rate Setting Methodology Final Report 6.9.24 can be found at: https://drive.google.com/file/d/1T8ziwcumuavBMVfFuVpPsfNmqr--RsESR/view	10/01/2026

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide sufficient grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The waiver was approved to provide CDEC the appropriate time to work with all relevant partners (counties, providers, families) on how best to	08/01/2026

	implement the grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i)	
2	CDEC will work with our partners to develop draft rules and practices to come into compliance.	06/01/2026
3	CDEC will share the draft rule with OCC for review.	06/01/2026
4	CDEC will promulgate the needed rule.	06/01/2026
5	CDEC will deploy the changes needed to our CCCAP data system, CHATS.	06/01/2026
6	CDEC will submit a plan amendment.	07/01/2026

HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on pediatric CPR for licensed centers, licensed family child care homes, license-exempt family child care homes, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care homes, and an annual inspection for license-exempt family child care homes for compliance with pre-service or orientation training requirements related to pediatric CPR, as required by 98.42(b)(2)(i)(B) and 98.43(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, and 5.5.2bi)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	CDEC will update the Introduction to First Aid and CPR and Introduccion a Primeros Auxilios y RCP courses and publish them on the Professional Development Information System (PDIS) to support the Federal monitoring request to add content on the steps of CPR to be added.	10/01/2024

2	CDEC will provide evidence of compliance by sharing the course link: Link to review updated course (Note: some links within the course may not work in this Review link, but they do work in the published course on the PDIS): Introduction to First Aid and CPR can be found at: https://360.articulate.com/review/content/07f6c0ea-e93e-44f9-8223-5aa411908a2d/review	12/31/2024
3	CDEC will amend the 2024-2027 State Plan with updated information showing compliance with 98.44(b)(1)(i). (Plan Question 5.4.1j) and 98.42(b)(2)(i)(B) and 98.43(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, and 5.5.2bi)	01/31/2025

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for all provider types, as required by 98.33(a)(4). (Plan Question 5.5.4aii). Please note the Lead Agency has an approved waiver for portions of this requirement through August 1, 2026.

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	CDEC will consult with the Child Care State Capacity Building Center (SCBC) and CCDF Data and Information System Consultation Center (DISCC) to obtain technical assistance in developing a plan to comply with 98.33(a)(4)	01/31/2025
2	CDEC will meet with internal and external subject matter experts to define the requirements for the proposed solution based on information received from federal technical assistance.	06/30/2025

3	CDEC will complete the requirements for the determined solution.	12/31/2025
4	CDEC will deploy and implement the determined solution.	06/01/2026
5	CDEC will provide evidence of compliance and amend the 2024-2027 State Plan.	07/01/2026

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not include the results of the activities to investigate and recover fraudulent payments, as required by 98.68(b)(2). (Plan Question 10.2.2b)
- The Lead Agency does not include the results of the activities to impose sanctions on clients or providers in response to fraud, as required by 98.68(b)(2). (Plan Question 10.2.2e)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	CDEC is gathering the results to share for 10.2.2b and 10.2.2e to be submitted into the CARS System.	01/15/2025
2	CDEC will provide evidence of the results in 10.2.2b and 10.2.2e for review.	01/21/2025
3	CDEC will add the results information to the next amendment to the state plan.	01/31/2025